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Attorney for Petitioner, Doris Shum

FILED
San Francisco County Superior Court
APR - 3 2025
CLERK OF THE COURT
By: Deputy Clerk

**SUPERIOR COURT OF THE STATE OF CALIFORNIA**

**IN AND FOR THE COUNTY OF SAN FRANCISCO**

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|---|---|
| ESTATE OF<br><br>GIGI KA MING SHUM<br><br>Decedent | **CASE NO. PES-24-307304**<br><br>**ORDER FOR FINAL DISTRIBUTION ON WAIVER OF ACCOUNTING AND FOR ALLOWANCE OF STATUTORY ATTORNEYS' FEES**<br><br>**Hearing Date:** 4/2/25<br>**Time:** 9:00 am<br>**Dept:** 204 |

DORIS SHUM, Administrator of the Estate of GIGI KA MING SHUM, ("Decedent"), having filed a Petition for Final Distribution on Waiver of Accounting and for Statutory Allowance of Attorneys' Fees and the Petition coming on this date regularly for hearing in Department 204 of the Court, the Court finds:

1. Jurisdictional Facts

Decedent died intestate on December 19, 2023, in the City and County of San Francisco, State of California. At the time of her death, Decedent was a resident of the City and County of San Francisco, State of California.

2. Compliance with Notice. Due notice of the hearing on the Petition has been regularly given for the period and in the manner prescribed by law.

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3. Appointment of Personal Representative: Issuance of Letters to Petitioner. The Decedent died intestate. Pursuant to the Order for Probate signed and filed on June 4, 2024, Petitioner was granted authority by order of this Court to administer Decedent's estate (the "Estate") without Court supervision under the Independent Administration of Estates Act with full authority. Letters of Administration were issued on June 4, 2024. At all times since issuance of the letters, Petitioner has been and now is duly qualified as the personal representative of the Estate.

4. Acts and Transactions. The Administrator has performed all duties required of her.

5. Estate in Condition to be Closed. More than four months have elapsed since the issuance of Letters. Notice of Administration has been given to creditors as required by law. The time for filing and presenting creditor's claims has expired and the estate is now in a condition to be closed.

6. Accounting. All persons entitled to an accounting have waived an account by Petitioner.

7. Estate Consists of Separate Property. The Decedent was not married at the time of her death. The Estate consists entirely of the separate property of the Decedent.

8. Character of Estate Property. The Estate under the control and in the possession of the Administrator as of February 1, 2025:

The sole asset of the estate is a residential condo located at 550 S. Van Ness Avenue #208, San Francisco CA 94110 and described below:

THE LAND REFERRED TO HEREIN BELOW IS SITUATED IN THE CITY AND COUNTY OF SAN FRANCISCO, STATE OF CALIFORNIA AND IS DESCRIBED AS FOLLOWS:

PARCEL A:

Condominium Unit No. 208, Lot 66, as shown upon the Condominium Map and diagrammatic floor plan entitled "Map of 550 South Van Ness Avenue, a Condominium Project Being a Resubdivision of Lot 3, Portion of Assessors Block 3570 San Francisco, California" which was filed for record on December 13, 1991 in Condominium Map Book 35 at pages 39 through 45, inclusive, in the Office of the Recorder of the City and County of San Francisco, State of California (referred to herein as "the Map"), and as further defined in the Declaration of Covenants, Conditions and Restrictions 550 South Van Ness Avenue recorded on December 17. 19991 in Book F523 Page 75 and following, Official Records of

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the City and County of San Francisco, State of California (referred to here in as "the Declaration").

Excepting therefrom, any portion of the common area lying within said Unit.

Excepting therefrom:

(a) Easements through said Unit, appurtenant to the Common Area and all other Units, for support and repair of the common area an all other units.

(b) Easements, appurtenant to the common area for encroachment upon the air space of the Unit by those portions of the common area located within the Unit.

PARCEL B:

An undivided 2.988% interest in and to the Common Area as shown and defined on the Map, reserving therefrom the following:

(a) Exclusive easements, other than PARCEL III, as designed on the Map and reserved by Grantor to units for use as designed in the Declaration; and

(b) Nonexclusive easements appurtenant to all units for ingress and egress, support, repair and maintenance.

PARCEL C:
(a) The exclusive easement to use the Parking Area(s) designated as P-33 on the Map.

Parcel D:

A nonexclusive easement appurtenant to Parcel A above for support, repair and maintenance, and for ingress and egress through the Common Area in accordance with California Civil Code Section 1361(a).

PARCEL E:

Encroachment easements appurtenant to the Unit in accordance with the provisions of the Declaration.

9. Creditor's Claims. A Creditor's Claim was filed for decedent's unpaid ambulance services in the amount of $1,733.34 by the City and County of San Francisco on August 19, 2024. Petitioner paid the $1,733.34. The City and County of San Francisco have filed an Acknowledgement of Satisfaction of Creditor Claim with the court on January 6, 2025.

10. Payment of Debts and Expenses. All debts of the Decedent and the Estate and all

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expenses of administration have been paid except fees for the ordinary services of Leland, Parachini, Steinberg, Matzger and Melnick, LLP, attorneys for the Administrator. The Administrator has waiver fees.

11. Preliminary Distributions. No prior distributions have been made.

12. State and Federal Estate Taxes. No Federal or California estate tax returns have been filed.

13. State and Federal Estate Taxes. All California and federal income taxes returns due or payable by the Estate have been filed and taxes paid Petitioner.

14. Personal Property Taxes. No personal property taxes are due or payable.

15. Statement of Death of Real Property Owner. A Change in Ownership Statement - Death of Real Property Owner was filed on October 11, 2024.

16. Reserve. No reserve is requested.

Ordinary Compensation for Attorneys is Allowed. Petitioner has retained the law firm of Leland, Parachini, Steinberg, Matzger, and Melnick, LLP ("Attorneys"), to represent her as administrator, in connection with the administration of the Estate. Attorneys have rendered valuable services to the Estate, and statutory compensation should be allowed.

The statutory Attorney's compensation for services is $13,800.00, computed on the fee base of $540,000.00 (the value reflected on the I & A), was arrived at as follows:

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| **FEE BASE** | |
| Inventory and Appraisal | $540,000.00 |
| **Total of Estate for Calculation:** | **$540,000.00** |
| **FEE COMPUTATION** | |
| 4% of the first $ 100,000 | $4,000.00 |
| 3% of the next $ 100,000 | $3,000.00 |
| 2% of the next $ 340,000 | $6,800.00 |
| **Total:** | **$13,800.00** |

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17. Distribution of Assets on Hand. Administrator Doris Shum is entitled to the entire estate of decedent.

IT IS ORDERED that.

1. The administration of the Estate is brought to a close.

2. All reported acts and proceedings of the Administrator set forth in the petition and report are confirmed and approved;

3. Administrator is authorized to pay their attorneys, Leland, Parachini, Steinberg, Matzger, and Melnick, LLP ("LPS"), the sum of $13,800.000 as statutory compensation for ordinary services rendered in the administration of the Estate.

4. Administrator Doris Shum is authorized and directed to distribute the estate in the Administrator's possession as follows:

The sole asset of the estate should be distributed to Petitioner, Doris Shum, and is described as a residential condo located at 550 S. Van Ness Avenue #208, San Francisco CA 94110 and described below:

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PARCEL C:
(a) The exclusive easement to use the Parking Area(s) designated as P-33 on the Map.

Parcel D:

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PARCEL E:

Encroachment easements appurtenant to the Unit in accordance with the provisions of the Declaration.
APN: LOS 66, Block 3570

5. Any portion of the Estate acquired or discovered after this Court order for final distribution, is distributed to Petitioner, Doris Shum.

6. That upon delivering the property and on the filing of receipt, Administrator be discharged and released from all liability to be incurred hereafter; and

Dated: 4/2/25

Stephen M. Murphy
JUDGE OF THE SUPERIOR COURT

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STEPHEN M. MURPHY

ORDERED WITHOUT HEARING

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